

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

Case Number: 2024-DR-001150

and

Division: A

CHRISTOPHER HANSON,

Respondent/Husband.

_____ /

**PETITIONER'S MEMORANDUM IN OPPOSITION TO RESPONDENT'S
MOTION TO TRANSFER VENUE AND/OR SECOND VERIFIED
MOTION TO DISQUALIFY JUDGE AYERS**

Petitioner, Sarah Hanson (“**Wife**”), by and through the undersigned attorney, files this Memorandum on Opposition to Husband’s Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers [**DIN 183**] as to the issue of the request to transfer venue raised by Respondent, Christopher Hanson (“**Husband**”), and states as follows:

1. *Florida Statutes* § 47.011 is the general venue statute. In general, an action shall be brought only in a county where the defendant resides, where the cause of action accrued, or where the property in litigation is located. *Fla. Stat.* § 47.011 (2024).
2. For purposes of applying the general venue statute to a dissolution of marriage action, the cause of action arises in the last county where the parties resided as husband and wife with the common intent to remain married. *Carroll v. Carroll*, 347 So. 2d 771, 772 (Fla. 1977); *Kopecky v. Kopecky*, 967 So. 2d 1109, 1111 (Fla. 4th DCA 2007).
3. A party may challenge venue because the venue chosen by the petitioner was legally improper or because the petitioner’s chosen venue (although proper) is an “inconvenient forum.” The inconvenient forum argument comes from *Fla. Stat.* § 47.122, which states: “for the convenience of the parties or witnesses or in the interest of

justice, any court of record may transfer any civil action to any other court of record in which it might have been brought.” *Fla. Stat.* § 47.122 (2024) (emphasis added).

4. It is legal error and an abuse of discretion to utilize forum non conveniens to transfer an action to a venue not permitted by the venue statutes, as one can only transfer the action where “it might have been brought.” *Vitale v. Vitale*, 994 So. 2d 1242, 1243 (Fla. 4th DCA 2008).
5. The initial selection of venue is by the petitioner, who has no obligation to prove that the selection is proper. *Ozuna v. Sheard*, 109 So. 3d 1176, 1178 (Fla. 3d DCA 2013). The burden of pleading and proving *improper* venue is on the respondent. *Regions Financial Corp v. Mercenari*, 78 So. 3d 1, 2 (Fla. 3d DCA 2011). A respondent’s motion or pleading objecting to venue must be supported by facts, and Florida law requires the motion to be verified or include affidavit(s). *Fla. Stat.* § 47.101(2) (2024) (if a party desires a change of venue, he or she may move stating the belief he or she will not receive a fair trial and “[s]uch a motion shall be verified”); *Cohen v. Scarnato*, 270 So. 3d 410, 412 (Fla. 4th DCA 2019) (“the party seeking a transfer under transfer statute must submit affidavits or other evidence to show that a change of venue is necessary for the convenience of the parties or witnesses or in the interest of justice”); *Electric Source Network, Inc. v. Value Rent-A- Car, Inc.*, 611 So. 2d 585, 586 (Fla. 3d DCA 1993) (holding where there were no affidavits in support of defendant’s motion to abate for improper venue, the allegations in defendant’s motion were not established by sworn motion before the trial court).
6. If the respondent is requesting a change of venue by making an inconvenient forum argument, respondent has the burden of proving the forum selected by the petitioner would work a substantial inconvenience upon the parties or witnesses, or that the forum selected

by the petitioner would cause the parties undue expense, or the likelihood of injustice in the forum selected by the petitioner. *Regions Financial Corp v. Mercenari*, 78 So. 3d 1, 2 (Fla. 3d DCA 2011). Even if the respondent meets this burden of proof, the court may only transfer venue to a court where the action could have been filed initially. *Cohen*, 270 So. 3d at 412.

7. Alternatively, if the respondent is arguing the petitioner chose an improper venue and is not making an inconvenient forum argument, then the respondent must establish not only venue is proper in respondent's selection, but also that it is improper in petitioner's selection. *Hightower v. Estate of Lyman*, 58 So. 3d 377, 379 (Fla. 2d DCA 2011). "A motion by the defendant to dismiss or transfer on the ground of improper venue raises issues of fact which must be resolved by an evidentiary hearing, unless the complaint shows on its face that venue is improper." *LoanFlight Lending, LLC v. Bankrate, LLC*, 378 So. 3d 1280, 1287 (Fla. 2d DCA 2024). Once the respondent meets the initial burden of showing plaintiff's choice of venue is improper, the burden shifts back to the plaintiff to prove the initial venue selection was proper. *Hightower*, 58 So. 3d at 379.
8. The party raising the defense of improper venue under Fla. Fam. L. R. P. 12.140(b) must file a motion to dismiss at the outset of the litigation, otherwise, the defense of improper venue is waived. Fla. Fam. L. R. P. 12.140(h) (2024).
9. If the court determines venue was filed in the wrong county and should be in a different county, then Fla. Fam. L. P. 12.060(b) provides the court may transfer the action in the manner provided by Florida law to the proper court in any county in which it might have been brought in accordance with the venue statutes. Fla. Fam. L. R. P. 12.060(b) (2024). (Emphasis added).

10. In cases where more than one venue may be proper and an action is properly brought in one venue, the defendant may move for change of venue under *Fla. Stat.* § 47.122 based on circumstances showing that the venue is an inconvenient forum. Regions Financial Corp v. Mercenari, 78 So. 3d 1, 2 (Fla. 3d DCA 2011).
11. A transfer of venue based on convenience is improper where no affidavits or other sworn proof support the motion. *See Graham v. Graham*, 648 So.2d 814 (Fla. 4th DCA 1995); *Gallagher v. Smith*, 517 So.2d 744, 747 (Fla. 4th DCA 1987); *see also Bassett v. Talquin Electric Cooperative, Inc.*, 362 So.2d 357, 359-60 (Fla. 1st DCA 1978).
12. In the instant matter, it appears that the majority of Husband’s motion focuses on his request for a disqualification of The Honorable Kelly Ayers, which was granted. The only paragraphs of Husband’s motion that appear to directly address venue are paragraphs 97 and 98, which state the following:
- a. **Paragraph 97:** It’s necessary that the Court transfer the case to a new Judge, or ideally, to a new venue such as Pasco County where Wife resides so that, the litigants have “their disputes resolved by impartial judges” “free from bias and prejudice” in assessing these issues critical to the litigants and children’s future well-being as required by *Berry v. Berry* 765 So.2d 855 (Fla. 5th DCA). [my comment – notably, the Berry case involves a disqualification matter and not a venue transfer matter.]
 - b. **Paragraph 98:** Given the evidence of bias in favor of Mr. Davis, Ms. Hodz, and the other attorneys involved, at the expense of Husband’s due process rights and other interests, it’s obvious Husband has no change at fair process in front of Judge Ayers, and likely in Hillsborough [C]ounty at all.

13. Furthermore, paragraph four (4) of Wife's Amended Petition for Dissolution of Marriage [DIN 42] states "Venue. Venue is proper in the Thirteenth Judicial Circuit because the Parties last resided together as Husband and Wife in Hillsborough County. Paragraph four (4) of Husband's Answer to Wife's Amended Petition for Dissolution of Marriage [DIN 79] responds by stating "Admitted." Perhaps even more noteworthy, paragraph three (3) of Husband's Counter-Petition for Dissolution of Marriage [DIN 79] states " VENUE. Venue is proper in Hillsborough County because this is where the intact marriage of these Parties was last evidenced by a continuing union and the intent to remain married to each other."
14. It is clear that the request for a transfer of venue is unsupported unnecessary and vexatious litigation. As Husband has not pled any lawful basis for a transfer of venue, Husband's Motion to Transfer Venie and/or Second Verified Motion to Disqualify Judge Ayers (as to the issue of venue) should be denied.
15. Wife engaged the undersigned attorney to represent her in this action and is obligated to pay attorney's fees, costs, and suit money for professional services rendered. The Premarital Agreement addresses attorney's fees incurred for the enforcement of the provisions therein and states "Should any party hereto retain counsel for the purpose of enforcing or preventing the breach of any provision of this Agreement, including, but not limited to, by instituting any action or proceeding to enforce any provision hereof, for damages by reason of any alleged breach of any provision hereof, for a declaration of such party's rights or obligations hereunder, or for any other judicial remedy, then the prevailing party shall be entitled to be reimbursed by the losing party for all reasonable costs and expenses incurred thereby, including, but not limited to, reasonable attorney's fees and costs for the services rendered to such

prevailing party, whether at trial, in bankruptcy or reorganization proceedings, or on appeal.” The Court should award Wife her reasonable attorney’s fees, costs, and suit money incurred in connection with the filing and litigation of this motion. Furthermore, Wife asserts that Husband’s Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers (as to the issue of venue) rises to the level of unnecessary and vexatious litigation, bad faith conduct, and an attempt by Husband to generate additional and unnecessary attorney’s fees for Wife. Therefore, the Court should award Wife her attorney’s fees, costs, and suit money pursuant to the Court’s inherent authority. See *Rosen v. Rosen*, 696 So.2d 679 (Fla. 1997); *Wrona v. Wrona*, 592 So.2d 694 (Fla. 2d DCA 1991); *Young v. Hector*, 884 So.2d 1025 Fla. 3d DCA 2004); *Sutter v. Sutter*, 578 So.2d 788 (Fla. 4th DCA 1991); *Moakley v. Smallwood*, 826 So.2d 221 (Fla. 2002); *Dralus v. Dralus*, 627 So.2d 505 (Fla. 2d DCA 1993).

WHEREFORE, the Petitioner, Sarah Hanson, respectfully requests that this Honorable Court:

- A. Deny Husband’s Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers (as to the issue of venue); and
- B. Award Wife her reasonable attorney’s fees, costs, and suit money incurred in connection with Husband’s Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers (as to the issue of venue).

Dated: June 2, 2025

Respectfully submitted,

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.

Fla. Bar No. 0115540

scott@davislawtampa.com

service@davislawtampa.com

TAMPA BAY FAMILY LAW & MEDIATION, P.A.

P.O. Box 118667

Tampa, FL 33679

(813) 251-6222 (telephone)

Counsel for Wife

CERTIFICATE OF SERVICE

I hereby certify that, on June 2, 2025, a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal to Respondent/Husband.

/s/ Scott Paul Davis